BY ORDER OF THE COMMANDER
673D AIR BASE WING (PACAF)

673D AIR BASE WING INSTRUCTION
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Civil Engineering

CONSERVATION AND MANAGEMENT OF CULTURAL AND NATURAL RESOURCES

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This instruction implements AFPD 32-70, *Environmental Quality*, and prescribes the policies and responsibilities for the management and conservation of land, water, forest, fish, wildlife and outdoor recreation resources, as well as historical and archeological site protection on Joint Base Elmendorf-Richardson (JBER) lands. These resources will be managed to sustain biodiversity under the principles of multiple-use and sustained yield within the limitations of the overriding military mission. It's the responsibility of commanders at all levels to ensure compliance with this instruction. This instruction applies to any individual, active duty, reserve, and civilians on JBER lands. Tennant organizations are also bound by the provisions of this regulation. Violations of the specific prohibitions and requirements of this instruction by military personnel may result in prosecution under the Uniform Code of Military Justice (UCMJ). All violators, regardless of affiliation, may be prosecuted in courts of state or federal jurisdiction for applicable violations of State or federal law, and are subject to the penalties of those jurisdictions through Assimilated Crimes Act (18 U.S.C. 1382), and/or in addition to the above penalties. The 673d Air Base Wing Commander (673 ABW/CC) may impose administrative sanctions for non-compliance in the form of warnings, suspension of recreational privileges, and barment from the installation, (18 U.S.C 1382). Law Enforcement, Natural Resource, Cultural Resource, Range Control, and Alaska Department of Fish and Game (ADF&G) personnel are exempt from the provisions of this instruction while operating within the scope of their authority. Refer recommended changes and questions about this publication to the office of primary responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication*. Route the AF Form 847 through the appropriate chain of command. Ensure all records created as a result of processes prescribed in this publication are maintained in accordance with AFMAN 33-363, *Management of Records*, and disposed of in accordance with Air Force Records

Information management System (AFRIMS) Records Disposition Schedule (RDS) located at **https://www.my.af.mil/afrims/afrims/afrims/rims.cfm**. See **Attachment 1** for Glossary of References and Supporting Information. **AFI 33-332*, Air Force Privacy Program*. This publication requires the collection and or maintenance of information protected by the Privacy Act of 1974 authorized by 16 U.S.C. 670, The SIKES ACT. The applicable Privacy Act SORN, #F031 AF SF C.**

SUMMARY OF CHANGES

This document is substantially revised and must be completely reviewed. This document is a required combination of US Army Garrison, Fort Richardson, Alaska Regulation 190-13 (Conservation Program-Enforcement on Fort Richardson, Alaska), and 3WGI 32-7001 (Conservation and Management of Natural Resources). Changes made reflect the current policies and procedures for the Conservation and Management of Cultural and Natural Resources of 673 ABW, JBER , Alaska.

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1. Background Concepts and Functional Area Responsibilities:

1.1. Policy:

1.1.1. Department of Interior land acquired for Department of Defense (DoD) use is for national defense. JBER land is required to support the military mission. In most instances, it can concurrently and compatibly support the military mission and sustained yields of renewable natural resources. The President and Congress, through various public laws, have directed conservation measures be implemented on all military lands.

1.1.2. JBER has a public land trusteeship responsibility to protect and enhance environmental quality through the maintenance of natural diversity and ecosystem sustainability. To fulfill its commitment to stewardship, the installation will comply with State of Alaska (State) and United States (federal) laws, regulations, and directives governing the management of natural and cultural resources.

1.2. **Responsibilities:**

1.2.1. The Commander, 673 Air Base Wing (673 ABW) is responsible for ensuring that natural and cultural resource plans, agreements, and activities are developed and monitored on JBER.

1.2.2. The Commander, 673d Civil Engineer Squadron (673 CES) hereafter referred to as JBER Civil Engineer, is responsible for developing and implementing an integrated natural resources management program in cooperation with ADF&G, the US Fish and Wildlife Service (USFWS), Bureau of Land Management (BLM) and National Marine Fisheries Service (NMFS). The OPR for the natural resources programs is the Cultural and Natural Resource Conservation Office (673 CES/ CEANC) hereafter referred to as "CEANC."

1.2.3. The Commander, 673d Security Forces Squadron (673 SFS/CC) is responsible for enforcing all laws on the installation. The 673 SFS/CC will delegate the authority to CEANC to enforce all cultural and natural resource laws, regulations and policies governing the use of JBER lands. Full time Conservation Law Enforcement Officers (CLEO), selected Military Conservation Agents (MCA), and detailed Military Police (MP) will provide enforcement of natural and cultural resources along with off-road vehicle regulations. In accordance with 673 SFS requirements MCAs, selected and trained to provide enforcement, will be designated in writing by 673 SFS/CC.

1.2.4. The US government will not be liable for any damage or injury to equipment, persons, or property, resulting from the use or participation in any recreational activity on JBER lands. Anyone who engages in recreational and natural resource harvesting activities, do so completely at their own risk. Recreational users and those harvesting natural resources are financially liable for any damage to government or private property resulting from their activities.

2. Implementing Integrated Natural Resources Management:

2.1. **Ecosystem Management.** JBER minerals, vegetation, wildlife resources, wetlands, lakes, and streams will be managed within the limitations of the overriding military mission and under the principles of ecosystem management.

2.2. **Management Priorities.** The principal purpose of JBER is to support the mission. The 673 ABW will strive to provide continued DoD access to JBER lands for realistic military training and testing while sustaining the long term ecological integrity of its resource base through protection, conservation, and enhancement of its environmental resources. In support of the missions of the 673 ABW and its tenants.

2.2.1. **First priority** will be given to support of the military mission.

2.2.2. **Second priority** will be given to the protection, preservation, and enhancement of habitat used by threatened and endangered species and species of special concern designated by the State of Alaska.

2.2.3. **Third priority** will be given to maintaining biodiversity through the protection, conservation, and enhancement of fish and wildlife habitat.

2.2.4. **Fourth priority** will be given to the development, management, and conservation of areas capable of providing intensive recreational use; such as winter sport sites, picnic areas, and nature trails. Such areas will be managed primarily for their recreational value.

2.2.5. **Fifth priority** will be to manage the remaining areas to provide for the greatest public benefit. This determination must be based upon an analysis of the ecological factors involved, the supply and demand relationship of the various resources and uses made of the resource. In determining the greatest benefit, full consideration must be given to tangible and intangible social and economic values.

2.3. **Conservation Education.** Conservation education is a major component of the natural resources program. Every effort will be made to educate JBER personnel on all aspects of the program through:

2.3.1. Maintenance of wildlife and cultural displays at the JBER Wildlife Education Center.

2.3.2. Presentation of briefings to newcomers, units, organizations, and community schools.

2.3.3. Publication of resource information, articles, and notices in the following:

2.3.3.1. JBER newspaper.

2.3.3.2. Intranet local area network bulletin board.

2.3.3.3. US Army Alaska (USARAK) Conservation Website.

2.3.3.4. JBER Recreational Access System.

2.3.3.5. Kiosks and signage.

2.3.3.6. Electronic bulletin boards.

2.3.3.7. Information displayed at the Visitor Centers.

2.3.3.8. Recorded information via the JBER Wildlife Education Center (552-2282).

2.4. **Desired Program Staffing:**

2.4.1. The JBER Civil Engineer will provide sufficient staffing to the conservation function for accomplishment of cultural and natural resources program objectives. Minimum staffing goals, resources permitting, are as follows:

2.4.1.1. Chief, Cultural and Natural Resources Conservation.

2.4.1.2. Fish and Wildlife Biologist/Natural Resource Specialist--five.

2.4.1.3. Forester -- one.

2.4.1.4. Seasonal Biological Technicians -- Five.

2.4.1.5. GIS Specialist -- one.

2.4.1.6. Conservation Law Enforcement Officers -- two.

2.4.1.7. Cultural Resources Manager -- one.

2.4.1.8. Detailed Military Police -- four.

2.4.2. Conservation enforcement staff includes CLEOs, detailed Military Police and MCAs. MCA program management is the responsibility of CEANC, as specified in operating instructions issued by the Senior CLEO.

2.4.3. MCAs and natural resources volunteers (NRV). Programs will be established and maintained to assist the permanent staff in implementing the natural and cultural resource programs. CEANC is authorized to recruit, train, and recognize MCAs and NRVs. Criteria for acceptance into the MCA or NRV programs will be briefed upon initiation of the application process.

2.4.3.1. Each MCA will provide a minimum of 72 hours per year towards the accomplishment of activities designated by the senior CLEO. These activities will include installation patrols to monitor and enforce use of natural/cultural resources, regulations, state, federal laws, and range regulations.

2.4.3.2. NRVs will provide support for monitoring wildlife, enhancing habitat, supporting forestry activities, and delivering natural resource education programs.

2.4.3.3. MCAs and detailed enforcement will be trained by CLEO staff on duty requirements.

2.4.3.3.1. MCAs are designated by the 673 ABW/CC to enforce all applicable federal and State of Alaska natural and cultural resource laws and regulations on JBER in accordance with 16 United States Code (USC) 670a (b)(1)(h).

2.4.3.3.2. The senior CLEO will ensure MCAs are trained based on a plan approved by the Chief, Cultural and Natural Resources Conservation.

2.5. **Installation Integrated Natural and Cultural Management Plans:**

2.5.1. Integrated Natural Resources Management Plan (INRMP). The JBER INRMP will serve as the natural resources component of the Joint Base General Plan (JBGP) and will address management of natural resources programs in accordance with DoDI 4715.03, *Natural Resources Conservation Program*, AFI 32-7064, *Integrated Natural Resources Management*, and other relevant DoD or Air Force policy. The INRMP will be reviewed annually, and revised as needed every 5 years in accordance with AFI 32-7064.

2.5.2. Integrated Cultural Resources Management Plan (ICRMP). The JBER ICRMP will serve as the cultural resources component of the JBGP and will address management and protection of cultural resources programs in accordance with AFI 32-7065, *Cultural Resources Management Program*, and other relevant DoD or Air Force policy. The ICRMP will be reviewed annually and revised as needed every 5 years in accordance with AFI 32-7065.

2.6. **Cooperative Agreements:**

2.6.1. Cooperation with state and federal agencies will be handled through the execution of cooperative agreements and memorandums of agreement. CEANC will prepare cooperative agreements with appropriate federal and state agencies in the areas of fish and wildlife management, forestry, outdoor recreation management, cultural resource protection, law enforcement, and land jurisdiction.

2.6.2. Agreements covering natural resources programs will be reviewed annually by CEANC.

2.6.3. Agreements covering law enforcement will be annually reviewed, coordinated and approved by 673 SFS/CC.

2.7. **Access Priority to Natural Resources on JBER:**

2.7.1. **First priority** is given to active-duty and retired military personnel, dependents, and DoD civilian employees.

2.7.2. **Second priority** is given to non-DoD civilians. The installation commander may open or restrict access to the installation for non-DoD civilians based on the commander's discretion. The installation commander will consider JBER security and the planned use of natural resources when determining access to natural resources on JBER.

2.8. **Access Areas Defined:**

2.8.1. Training areas within JBER-Richardson are access controlled by Army Range Control and posted on the JBER Recreational Access System.

2.8.2. Cantonment areas are developed (improved/semi-improved) land that hold a concentration of industrial buildings, housing, and airfields (see **Attachment 2, Figure A2.1,** Cantonment Area Map).

2.8.3. The Restricted Access Area is within the boundaries previously known as Elmendorf AFB. Access to this area for recreation is restricted to DoD identification card holders (see **Attachment 2, Figure A2.2,** Restricted Access Map).

2.8.4. Permanently closed and off limits areas are designated by Range Control or the 673 ABW/CC and are so designated due to mission conflicts with any recreational activities. See paragraph **6.4.4**, this instruction, for list of permanently closed and off limits areas on JBER.

3. Wetlands and Floodplains:

3.1. **Objectives.** JBER will protect, conserve, and manage wetland, floodplain, and coastal zone resources. The program will fully comply with state and federal regulatory requirements, by accomplishing the following objectives:

3.1.1. Minimize the location of projects and activities in wetlands and 100-year floodplains.

3.1.2. Minimize bank erosion along the shores of lakes or streams.

3.1.3. Identify and minimize point and non-point pollution sources which may impact lakes and streams.

3.1.4. Make coastal zone consistency determinations on all projects which impact the identified coastal zone areas on JBER.

3.2. **Responsibilities**. Wetland, floodplain, and coastal zone evaluations will be accomplished by CEANC during the 673 CES work order and project evaluation process.

3.2.1. The most current available maps will be used to determine the presence of wetlands, floodplains, and coastal zone resources in proposed project areas.

3.2.2. U.S. Army Corps of Engineers (USACE) and State coordination will be accomplished prior to the initiation of any projects which impact wetlands, floodplains, or the coastal zone. The appropriate permits or waivers will be obtained, posted on site and made part of the project file.

3.2.3. When activities take place in wetland or floodplain areas best management practices will be used to limit the movement of silt generated by construction or repair work.

3.3. **Wetland Survey and Delineation.** Field delineations will be made every 10 years to upgrade the wetlands and floodplains maps.

4. Fish and Wildlife Management:

4.1. **Objectives.** JBER will have a current program for the protection, conservation, and management of fish and wildlife resources identified in the INRMP. The program will work to accomplish the following objectives:

4.1.1. Within mission constraints and safety considerations, maintain or increase the diversity of non-invasive JBER wildlife populations through ecosystem based multiple species management.

4.1.1.1. Protect and conserve federally-listed and proposed threatened and endangered plants, animals, and their habitat and state listed endangered or rare species and species of special concern as recognized by USFWS.

4.1.1.2. Other species will be managed within habitat constraints of the threatened and endangered species after consultation with ADF&G, NMFS and USFWS.

4.1.2. Manage wildlife populations to minimize undesirable or "nuisance" effects of wildlife.

4.1.3. Maintain or improve opportunities for consumptive and non-consumptive uses of wildlife resources.

4.1.4. Increase the awareness and cooperation by JBER personnel in the fish and wildlife management program.

4.2. **Responsibilities:**

4.2.1. CEANC:

4.2.1.1. Responsible to the Joint Base Civil Engineer (JBCE) for JBER fish and wildlife resource plan and regulation development and implementation.

4.2.1.2. Is responsible for wildlife control and dispatching or treatment of injured wildlife in accordance with ADF&G, NMFS and USFWS regulations, statutes and permits.

4.2.1.3. Is responsible for providing enforcement of federal and State fish and wildlife regulations and statutes.

4.2.2. The 673 SFS will assist the conservation enforcement staff, if available, in herding wildlife away from areas where they present an immediate danger to life and property.

4.2.3. The 3rd Wing Safety Office (SE) is responsible for the JBER Bird Aircraft Strike Hazard program (BASH).

4.2.3.1. SE executes its responsibility for hazing and/or removing wildlife and birds within the Bird and Waterfowl Exclusion Zones (BEZ/WEZ) in accordance with 3WGI 91-212, *Bird and Wildlife Aircraft Strike Hazard (BASH) Program,* through a contract with US Department of Agriculture Wildlife Services (Wildlife Services).

4.2.3.2. CEANC and MCA personnel will assist Wildlife Services as requested, when available.

4.3. **Fish and Wildlife Management Plan.** A plan covering all aspects of fish and wildlife management on JBER will be included in the INRMP and maintained as a component of the JBGP in accordance with Air Force requirements.

4.4. **Fisheries Management.** Lakes and streams will be managed to maintain natural populations, ecosystems, and secondarily produce an optimum number of fish of all sizes for the recreational enjoyment of JBER personnel.

4.4.1. Pacific salmon populations will be cooperatively managed with ADF&G through monitoring and habitat management.

4.4.2. Fishing Regulations. State and federal laws and regulations govern all fishing activities on JBER. The 673 ABW/CC may impose additional restrictions but will not allow regulations more lenient than State requirements.

4.4.2.1. All individuals fishing in JBER lakes and streams must possess a valid State sport fishing license, and must obtain a recreational access permit (RAP) if fishing on JBER-Richardson. If fishing on JBER-Elmendorf, a validating JBER stamp on that license from 673d Force Support Squadron (673 FSS) outdoor recreation centers, the Base Exchange, or the JBER Wildlife Education Center.

4.4.2.2. Ship Creek is open to trout fishing in accordance with State fishing regulations. However, the creek is closed to fishing from the closure sign at the approach of the Elmendorf airfield south runway downstream to the west boundary of the installation (Reeve Boulevard), within 500 yards of the JBER Richardson high-dam, and from the upstream border of the Moose Run Golf Course to a point 300 yards downstream of the old Ft Richardson Hatchery.

4.4.2.3. Fish, Green, Hillberg, Lower and Upper Sixmile, Spring, Triangle, Otter, Gwen, Thompson, Waldon, and Clunie Lakes are the only JBER lakes open to fishing.

4.4.2.4. Eagle River above the Route Bravo bridge is open to fishing in accordance with State regulations.

4.4.2.5. All waters not specifically mentioned in this regulation are closed to fishing.

4.4.2.6. Northern pike will not be released back into the waters of JBER. Any pike caught in JBER waters must be kept or turned into CEANC.

4.5. **Wildlife Management.** Mammals and birds will be managed primarily for ecosystem considerations, non-consumptive, and recreational use in accordance with AFI 32-7064 as outlined in the current JBER INRMP.

4.5.1. Mammals. Management efforts will be directed toward maintaining healthy populations through habitat manipulation.

4.5.1.1. Habitat improvements will be accomplished as part of the vegetation management program included within the INRMP.

4.5.1.2. In-stream habitat work will not be performed without prior consultation and approval from the ADF&G Habitat Division, the USACE, and CEANC.

4.5.1.3. Where possible, habitat work will be designed to benefit more than one species.

4.5.2. Birds:

4.5.2.1. Management efforts will be directed at protecting and improving nesting habitat outside designated bird/waterfowl exclusion zones. Wetlands will be preserved and protected.

4.5.2.2. Activities which are detrimental to successful breeding are prohibited at active nesting sites for loons, swans, bald eagles, and other sensitive species of special concern as signed or posted.

4.5.2.3. Habitat of wildlife hazardous to aircraft will be managed to minimize the bird and wildlife aircraft strike hazard in accordance with 3WGI 91-212. This will require planting and specific cutting of vegetation along the flightline which will discourage use of these areas by hazardous wildlife.

4.5.3. Wildlife Hazing. JBER personnel will in no way haze or harass wildlife or encourage them to develop "nuisance" behavior. Only trained CEANC staff, MCAs, Wildlife Services, and airfield management staff are authorized to haze wildlife.

4.5.3.1. CEANC will secure State and federal permits that allow hazing and taking of hazardous wildlife by trained personnel.

4.5.3.2. No objects will be thrown at wildlife except those permitted under paragraph **4.5.3**, this instruction.

4.5.3.3. No wild animal may be kept as a pet, except as permitted by the ADF&G and the USFWS.

4.5.3.4. Feeding wildlife, including migratory waterfowl, is strictly prohibited. However, birdfeeders designed for songbirds may be operated outside of the Bird

Exclusion Zone (BEZ) boundary and only during the period of 1 November to 31 March.

4.5.4. Becoming a 'bear resistant installation' will be a goal for all units and residents of JBER in accordance with the Joint Management of Bear/Human Conflicts Memorandum of Agreement (STATE MOA 054) to ensure a safe environment for JBER residents and wildlife.

4.5.4.1. Trash containers and grease barrels will not be allowed to overflow and act as bear attractants. Facility managers, building custodians, and owners of leased property within the property boundaries of JBER are responsible for ensuring garbage cans are emptied when full and all garbage is stored in secured buildings, or in bear resistant cages, dumpsters and trash receptacles.

4.5.4.2. The 773 CES Operations and 673 CES Asset Management flights will ensure all dumpsters at risk for attracting bears will be maintained as "bear resistant." All dumpsters purchased to collect any food items on JBER will meet bear resistant standards established by CEANC.

4.5.4.3. Trash/dumpster pickup schedules will be established and maintained to minimize nuisance behavior of bears and other wildlife.

4.5.4.4. CEANC will ensure JBER residents receive training and annual reminders that make them aware of bears, regulations and fines associated with feeding bears and the safety risks associated with bears and improper garbage management.

4.5.4.5. JBER conservation enforcement staff will aggressively enforce state regulations pertaining to the feeding of bears and other wildlife, and will strive to re-train food habituated bears to avoid human foods and garbage through an ADF&G approved aversive conditioning program outlined in State MOA 054.

4.5.5. Hunting Regulations. Hunting activities on JBER will be established in accordance with Alaska hunting regulations, and by permission of the installation commander as outlined in the INRMP. Hunt areas, methods and JBER hunting conditions for each species will be designated by CEANC in consultation with ADF&G, 673 SFS and approved by the 673 ABW/CC. The 673 ABW/CC has the authority to further restrict the ADF&G regulations on JBER. All moose and bear hunters must first receive a base orientation by CEANC and may be required to pass weapons proficiency skills testing, prior to hunting.

4.5.5.1. CEANC will ensure Alaska hunting laws and regulations are enforced on JBER. Area restrictions and conditions specified in the hunt orientation will be strictly enforced. Violations of hunt areas, conditions for accessing and hunting on JBER, in most circumstance, will result in immediate barment from JBER.

4.5.5.2. Archery and muzzleloader moose hunts may be conducted, in cooperation with the ADF&G, as part of the State's annual permit drawings. Permits, seasons, bag limits and permit hunt conditions will be agreed upon by CEANC and ADF&G. Hunting activity will be managed by CEANC, and coordinated with 673 SFS. All arrows must be permanently marked with the hunter's hunter/bow hunter education number at the fletching and near the point.

4.5.5.3. An archery/muzzleloader/shotgun with slugs hunts for black bear may be conducted, in cooperation with ADF&G, with methods and means, seasons and number of permits to be determined jointly. This hunt is intended to control population growth and alleviate nuisance wildlife complaints, and may be restricted to "wounded warriors" or disabled veterans. All arrows must be permanently marked with the hunter's hunter/bow hunter education number at the fletching and near the point.

4.5.5.4. Small game and fur animal hunting are currently allowed on JBER. However, this is only allowed on designated open training areas and participants must fully participate in the JBER recreational access system. Further restriction on the harvest of any species will be indicated in a JBER Outdoor Recreation Supplement, and the ADF&G Unit 14C area restrictions handout, available at the Anchorage, ADF&G office. Only shotguns 10 gauge and smaller and archery gear may be used to take small game and fur animals.

4.5.5.5. Waterfowl hunting is authorized north of Eagle River, but not within 100 meters of Eagle River, 300 meters of Eagle River Flats, and in accordance with State and federal regulations.

4.5.5.6. A recreation permit is required for trapping or hunting moose or bear and is issued by CEANC at the JBER Wildlife Education Center. A RAP is also required for hunting waterfowl, small game or fur animals and is available through the JBER recreational access system. A fee, specified in the most current JBER INRMP, may be collected from hunters for the permit to access and hunt JBER. The RAP holder disposes of permit when expired. The RAP is not a valid credential for installation access. Therefore, a valid installation access pass must be obtained in addition to the RAP.

4.5.5.7. While hunting or in possession of a firearm, persons under 16 years of age must be under the direct, immediate supervision of their parent or an adult 21 years of age or older, who has met State hunter education requirements, is currently authorized to recreate on JBER, and is full compliance with all applicable rules and regulations.

4.5.5.8. All special draw hunters will check in and out daily through the current RAP system as designated for each hunt. If system is down, individually sign in and out at the Visitor's Centers.

4.5.5.9. Areas off limits to hunting include all permanently closed and off-limits areas (see paragraph **6.4.4**, this instruction.), cantonment areas, Muldoon buffer zones, the east edge of Bulldog Trail to the western boundary, and all golf courses. Hunters may be directed individually by CEANC to target individual nuisance wildlife in one or more of the above areas.

4.5.6. **Trapping Regulations.** Recreational trapping on JBER is closed. The harvest of game or non-target fur animals by use of trap, snare, or take under a trapping license is prohibited, unless otherwise specifically permitted by CEANC. However, trapping on JBER may be conducted for nuisance species, identified by CEANC. Nuisance species trapping seasons and methods and means will fall within those provided in the Alaska Trapping Regulation with the permission of the installation commander. Nuisance

furbearer trappers will be selected from a pool of volunteers based on experience, trapper education course attendance, expertise and animals available for harvest. All trappers must have attended the Alaska Trapping School offered by the Alaska Trappers Association and received an installation orientation by CEANC. A lottery may be used if qualified trappers exceed permits available. Nuisance trapping is by special authorization or a RAP. Trappers must have the authorizations in possession while setting and checking traps. Current fees for trapping permits are identified in the current JBER INRMP.

4.5.7. Personal Responsibility and Punitive Actions. Personnel using JBER must be familiar with and are held responsible for knowing the federal, State and this and other fish and game and JBER recreational regulations. CEANC will provide recreational supplements, brochures, maps, website and other material as appropriate to inform the public of regulatory requirements.

4.5.7.1. Military personnel who violate any provision of this regulation, to include associated federal and state laws, are subject to prosecution under applicable UCMJ provisions (10 USC 801).

4.5.7.2. All violators, regardless of affiliation, may be prosecuted in courts of state or federal laws, and are subject to the penalties of those jurisdictions (18 USC 13 – Assimilative - Crimes Act, 32 CFR 552.18(f)(2) or 10 USC 2671(c) for enforcement of Alaska fish and game laws).

4.5.7.3. In lieu of or in addition to the above penalties, the 673 ABW commander may impose administrative sanctions for noncompliance in the form of warning, suspension of recreational privileges and barment from the installation (18 USC 1382).

4.5.8. **Wildlife Damage Control:**

4.5.8.1. Control efforts will be accomplished in cooperation with the ADF&G and the USF&WS. CEANC will obtain permits from the USF&WS and ADF&G for the possession and control of wildlife species on JBER.

4.5.8.2. Injured wildlife will be destroyed if it's determined the animal will not recover from an injury. Conservation enforcement staff and law enforcement personnel are authorized to destroy animals in defense of life or property in accordance with Alaska laws and regulations. JBER staff will immediately notify ADF&G officials following an emergency destruction of an animal. The meat or skin/skull of these animals will be salvaged and turned over to the State or its designee. Bear skulls and hides will be turned in to the state. Determinations to destroy individual animals will be made only by a JBER wildlife biologist, CLEOs, ADF&G or a licensed veterinarian.

4.5.8.3. Conservation enforcement staff and/or law enforcement patrols, if available, will respond to reports of moose, bears and other potentially dangerous wildlife in developed areas of the base. If response time is 15 minutes or more, the conservation enforcement office may request law enforcement to respond until conservation units arrive.

4.5.8.3.1. Wildlife incidents will be evaluated for action on a case by case basis, with CEANC staff being responsible for making the final decision.

4.5.8.3.2. Wildlife which presents no immediate danger to life and property will be herded back to undeveloped portions of the base, where practical. Other options, including trapping, darting by ADF&G staff, and relocation will be considered for use. Animals which exhibit repeated aggressive tendencies or which present a threat to people will be destroyed in accordance with Lethal Dispatch Policy (see **Attachment 3**).

4.5.8.3.3. CEANC will maintain wildlife control and dispersal equipment and supplies in sufficient quantities to perform year-round control operations.

4.5.9. Field Exercises and On-Duty Recreational Activities (USARAK Regulation 350-2, *Training,* US Army Alaska Range Regulation). Military personnel are prohibited from hunting while in an "on-duty" status. However, during bona fide survival training exercises, participants may take fish or small game per federal and State laws. No privately-owned firearms may be carried or used during on-duty status. Except for specifically organized and authorized transportation to and from established military recreation areas, military vehicles and aircraft will not be used for purposes directly or indirectly related to hunting, or fishing. These prohibitions do not apply to vehicles acquired from armed forces surplus property for use at recreation camps, operated by 673 FSS. Such vehicles will be painted in an inconspicuous nonmilitary color and bear no identification as US Governmental property. All incidents involving the killing or wounding of any wild animal on JBER land, whether in defense of life or property (as defined by the State), during military training, or as the result of an accident, will be reported immediately to the 673 SFS and or CLEO.

4.5.10. Report any incidents of government weapons discharges to 673 SFS Base Defense Operations Center (552-4444/3421).

4.6. **Exotic Species.** No species of fish or wildlife foreign to JBER will be introduced, unless approved by the USF&WS and ADF&G.

4.6.1. Possession of exotic pets will be in accordance with state and federal regulations. Pets will not be released into the local environment.

4.6.2. No pets will be released or allowed to roam freely within the boundaries of JBER. Pets must be under the control of their owners at all times. CEANC staff may remove or destroy domestic animals from non-improved portions of the installation, particularly if they pose a threat to migratory birds or native species.

4.7. **Conservation Education.** CEANC will conduct a wildlife education program for JBER personnel. The wildlife education center, Building 8481, is the centerpiece for wildlife education. Wildlife displays are maintained and augmented with new mounts as they are available. Tours of the wildlife displays will be conducted upon request. CEANC staff will be available to make wildlife presentations on JBER, upon request. The center will serve as a clearing house for fishing and hunting information, to include copies of JBER, federal, and state regulations. An introduction to Conservation safety and recreational programs will be provided at a JBER newcomers briefing.

4.8. **Inter-Agency Coordination:**

4.8.1. A formal cooperative agreement with the USF&WS and the ADF&G, in the form of the JBER INRMP, will be maintained for the cooperative management of fish and wildlife resources on JBER.

4.8.2. CEANC will obtain permits from state and federal agencies for the salvage, receipt and possession of fish, amphibians, migratory birds, eagles and resident wildlife in support of BASH, Scientific or Education Programs and Public Safety.

5. Vegetation Management:

5.1. **Objectives:**

5.1.1. Forest lands will be managed with the principles of integrated natural resources and ecosystem management, outlined in the INRMP. Primary objectives will be to meet the requirements for troop training, mission, and manage forest lands to reduce forest fire potential while maintaining and improving wildlife habitat, biodiversity, and forest health.

5.1.2. Secondary objectives will be to:

5.1.2.1. Improve the quality of recreation areas.

5.1.2.2. Conduct a sales program to dispose of forest products made available as the result of management activities in accordance 673 ABW/CC direction and INRMP requirements. Timber production will not be the primary objective of vegetation management on JBER, because of mission requirements and stand conditions.

5.1.2.3. On withdrawn lands, BLM has exclusive jurisdiction over all vegetative resources. Removal of more than one acre of timber must be coordinated with BLM for proper removal and disposition of timber resources.

5.2. **Responsibilities:**

5.2.1. CEANC is responsible to the JBCE for the development of all plans and regulations concerning the vegetation management program. CEANC will coordinate vegetation management plans with the BLM.

5.2.2. Conservation enforcement staff will provide enforcement service for the JBER forestry program.

5.2.3. The JBER contracting office is responsible for the execution and administration of all commercial sales of timber removed from Air Force property, and service/supply contracts supporting the vegetation management program. BLM is the appropriate authority for commercial sales of timber removed from withdrawn public domain land. If necessary, CEANC may use the services of the Air Force Center for Environmental Excellence (AFCEE) Forestry Program to sell trees, as provided for in AFI 32-7064.

5.3. **Vegetation Management Plan.** A plan covering all aspects of vegetation management on JBER will be prepared and maintained in the INRMP as a component of the JBGP in accordance with Air Force requirements.

5.4. **Accepted Management Practices.** The objectives of the vegetation management program will be met through the application of sound science currently accepted by other

agencies and the US Department of Agriculture (USDA) Forest Service and the BLM and other appropriate agencies. Selection of a particular practice will be determined by management and mission requirements outlined in the JBER INRMP.

5.5. **Forest Protection.** Ecosystems will be protected from insect, disease, and wildfire fire damage.

5.5.1. Disease and Insect Control:

5.5.1.1. Control will be accomplished through the application of ecosystem management practices which will keep vegetation in a healthy, vigorous condition.

5.5.1.2. If economically feasible, management efforts will focus on restoration of ecosystem health when conditions warrant.

5.5.1.3. Insecticides will not be used as control agents, except where high value trees exist, such as mission essential areas, or in the event of catastrophic forest infestations. Application of all pesticides will meet all USAF, State and federal laws and regulations.

5.5.2. Wildfire Suppression:

5.5.2.1. The JBER Fire and Emergency Services Flight (CEF) will respond to and suppress all wildfires on JBER in accordance with the JBER Wild Land Fire Management Plan.

5.5.2.2. The 773 CES heavy equipment will be made available for fire fighting, as required.

5.6. **Construction and Maintenance of Forest Access Roads.** To the extent possible, existing roads will be used for managing JBER natural resources. If additional roads be required, the following restrictions will apply: Design standards will generally be the minimum level needed. Roads constructed as a result of management activities may be closed, gated, and rehabilitated depending on conservation needs at completion of the management activity.

5.7. **Green Belts.** The area within 300 feet of all JBER lakes, ponds, and streams will be managed as buffer areas where minimal management occurs. Ecosystem restoration is allowed.

5.7.1. Clear cuts are not authorized in green belt lands where the forest is in general good health. Selective cuts with artificial seeding or hand planting will be used as required to maintain the forest stands in these areas.

5.7.2. Exceptions to the green belt policy may be granted for the development of recreation areas, road construction, or for other mission requirements.

5.8. **Forest Products Sales.** When authorized, forest products will be sold by means of personal-use or commercial timber sales. CEANC will establish the cost for timber sales based on prevailing market value in consultation with Alaska Division of Forestry and the BLM. Wood removed from the installation without proper authorization will be treated as stolen property, with the responsible individuals subject to prosecution. Forest product harvesting will be coordinated in time and place to avoid conflict with protection of

migratory bird nesting in accordance with the Migratory Bird Treaty Act (16 U.S.C. 703–712).

5.8.1. Personal-Use Sales. Forest products located on Air Force acquired property may be sold for personal use such as Christmas trees, firewood, burls, and house logs in the absence of commercial markets. On withdrawn public domain lands, personal use of forest products will conform to BLM policy and guidance.

5.8.1.1. CEANC will be responsible for personal use sales of all forest products from Air Force acquired land.

5.8.1.2. A Wood Cutting Permit will be issued by CEANC at the JBER Wildlife Education Center for all personal use removal of timber products. This permit expires 30 days from date of issue. The date-validated permit must be produced on location when asked by conservation enforcement staff. Permits for wood resources from within JBER-Richardson also need a RAP.

5.8.1.3. Proceeds from forest product sales will be deposited monthly, or upon reaching or exceeding $1,000, in the DoD Forest Reserve Account as managed by the AFCEE, if sales are authorized.

5.8.1.4. Wood will be cut from areas designated by CEANC only. Taking wood from an unauthorized area is **expressly prohibited.**

5.8.1.5. Forest products obtained for personal use may not be resold.

5.8.1.6. Details of the personal use program will be publicized on the JBER website and recorded information line (552-2282) at the Wildlife Education Center.

5.8.1.7. All wood cutters are required to sign a hold harmless agreement which each wood cutting permit obtained (see **Attachment 4**).

5.8.2. Commercial Sales. The only products which may be sold for commercial use are firewood and saw logs. CEANC will initiate all commercial timber sales in accordance with the requirements of AFI 32-7064. Sales will not exceed one year from date of award to date of completion. The Natural Resources Manager/Forester will act as contract compliance officers for all commercial sales.

6. Outdoor Recreation Management:

6.1. **Objectives.** JBER will implement and maintain an outdoor recreation management program for the benefit of JBER personnel, the public where allowed, and within mission constraints and resource capabilities. The following are the major program objectives:

6.1.1. Provide JBER personnel with the greatest possible number of outdoor recreation opportunities consistent with mission requirements, safety, good stewardship and land management principles.

6.1.2. Maintain and develop areas suitable for year-round recreational use.

6.1.3. Protect, conserve and enhance existing recreational resources.

6.2. **Responsibilities:**

6.2.1. The JBCE is responsible for supporting JBER outdoor recreation development and maintenance. CEANC will provide environmental planning and natural resource management services, and enforcement of federal and state natural and cultural resource laws, Air Force and JBER policies.

6.2.2. The 673 FSS/CC is responsible for operating and managing the various recreational facilities; specifically, paintball courses, ball fields, golf courses, ski facilities, lodges, marinas, and similar urban recreational facilities. The 673 FSS serves as the principle point of contract for all recreational clubs on the installation and will coordinate with the JBCE and CEANC to ensure recreational facility developments in natural resource areas conform to the JBGP and the INRMP.

6.3. **Management Plans.** The JBER INRMP will include outdoor recreation management on undeveloped portions of JBER.

6.4. **JBER Recreational Access Policy.** All persons wishing to recreate on JBER training land outside the main cantonment areas, as indicated by the recreational area map, will adhere to the JBER recreational access policy and permit procedures. Access and permit procedures are the same for all recreational pursuits on JBER, and for all recreational users including active duty, retirees and DoD civilian employees, except as otherwise noted in this regulation. In accordance with public laws and the JBER INRMP, permits public use of military land for recreation. This is accomplished through the recreational access program. The JBER recreational access policy is intended to support forces protection requirements, optimize public safety and minimize conflict with military training, while providing a full range of compatible outdoor recreation activities. The recreational access program authorizes personnel to be armed with a shotgun, rifle, or side arm; provided it is carried openly for personal defense against wildlife in conjunction with authorized activities in the recreation areas on JBER-Richardson. This is only authorized on the U.S. Army training areas within JBER-Richardson where access is control by Army Range Control and posted on the JBER Recreational Access System. When encountered by Law Enforcement or Security Personnel they are required to indentify that they are armed. Personnel recreating on JBER-Elmendorf are not authorized to carry personal weapons.

6.4.1. Recreation activities. Activities requiring a JBER RAP include fishing, hunting, hiking, jogging, biking, boating, picnicking, harvesting wood resources, mushroom, plant and berry picking, snow machining, riding all-terrain vehicles (ATV), horseback riding and dog sled mushing, snowshoeing, skiing off trails maintained by 673 FSS, or other activities that enter into undeveloped areas or training areas on JBER.

6.4.2. JBER training land consists of numerous separate training areas. Security levels and access controls may differ for each training area (TA). Persons entering JBER training lands to recreate must first obtain a RAP, and check-in to the JBER recreational access system. All persons who desire to travel by any mode through JBER training areas must also obtain a RAP and use the recreational access system. Persons not recreating and remaining in the cantonment areas or on Arctic Valley Road do not need a RAP or to call the recreational access system, unless specifically directed to do so.

6.4.2.1. JBER Recreational Access System. CEANC will work with 673 SFS and Range Control to establish and maintain an electronic system that provides multiple methods of access, instruction for use, identifies time and areas to recreate, identifies

areas closed to access, remotely accepts access user fees and prints all necessary permits. The system will allow remote check-in/check-out for recreational users once the original RAP is secured. The system will provide CEANC with levels of use and harvest and provides 673 SFS and conservation enforcement staff general location of users. Initial access to the system will be located at both JBER visitor centers or online.

6.4.2.2. Recreational users, after properly checking-in, may enter or pass thru a training area that is designated as a recreational area and is indicated as being open during the time of intended use. All users must have their pass and personal identification in possession at all times. Users may enter such areas, using approved motorized and non-motorized modes of conveyance, in strict compliance with all pertinent state, federal, and JBER rules and regulations. The RAP is not a valid credential for installation access. RAP users must otherwise be entitled to installation access in accordance with installation access policy.

6.4.3. Areas Open to Recreation. A list of areas that are open to recreation, for a designated time period, is provided by Range Control and CEANC through the JBER Recreational Access System. Range Control determines which training areas will be open to recreation and provides this information to the Recreational Access System.

6.4.4. Permanently Closed and Off-limits Areas. Range Control is responsible for delineating permanently closed and off-limits training areas. Additional Off limits areas are designated by the 673 ABW/CC. All recreational users of JBER land are responsible for knowing the boundaries of permanently closed and off-limits areas and avoiding these areas.

6.4.4.1. Closed/Off-Limits Areas, north of the Glenn Highway.

6.4.4.1.1. Ammunition Storage Areas A and B.

6.4.4.1.2. Six-Mile Munitions and Hillside Munitions areas.

6.4.4.1.3. Arctic NBC Training Site.

6.4.4.1.4. Elmendorf and Bryant Army Airfields.

6.4.4.1.5. Eagle River Flats Impact Area (including a 300 meter buffer zone, training areas (TA) 414, 415, 416, and portions of TAs 403, 406, and 410).

6.4.4.1.6. The 381IS Radar facility and surrounding 300 meter buffer unless on improved roads.

6.4.4.1.7. Antenna fields as posted.

6.4.4.1.8. All ranges and surrounding buffer zones.

6.4.4.1.9. All drop zones (DZ).

6.4.4.1.10. Explosive ordnance disposal (EOD)/Demolition ranges.

6.4.4.1.11. Landfill and Disposal Areas.

6.4.4.1.12. Forward operating base (FOB).

6.4.4.1.13. Operating gravel pits.

6.4.4.1.14. Camp Madbull training area.

6.4.4.2. Closed/Off-Limits Areas, south of Glenn Highway.

6.4.4.2.1. All ranges and surrounding buffer zones.

6.4.4.2.2. Site Summit area (TAs 420, 421,422, and a portion of 423 and 426 Biathlon Range).

6.4.4.2.3. All DZs.

6.4.5. Individuals may not enter any of the areas indicated as closed or restricted (or not specifically mentioned as being open) on the JBER recreational access system or any other closed area, as indicated by placard, blockade, verbal warning, red flag, or other means of communication. **Under No Circumstances Will Anyone Move Into Or Through A Closed Area.**

6.4.6. Fees. In accordance with AFI 32-7064, CEANC may charge a fee for issuance of permits for hunting, fishing, trapping, woodcutting, and outdoor recreation on lands controlled by JBER, if authorized by INRMP and 673 ABW/CC. The fee structure will be identified in the JBER INRMP. Fee changes will be adopted through the annual review of the JBER INRMP and approved by the 673 ABW/CC.

6.4.7. Proceeds from all permit sales will be properly safeguarded and deposited into the proper reimbursable account established by AFCEE. Local permit fee collections will be deposited in a designated local bank and the deposit receipt and DD Form 1131, *Cash Collection Voucher*, will be provided to 673 CPTS/FMF for disbursement. Serial numbers of all permits will be entered on the DD Form 1131 to document sales transactions.

6.5. **Restricted Access Areas:**

6.5.1. A RAP is required to recreate in restricted access areas. (see paragraph **6.4** this instruction):

6.5.1.1. Use of off-road vehicles (ORV), to include ATVs and snow machines of all types.

6.5.1.2. Performance of boat engine maintenance run checks on Six-Mile Lake.

6.5.1.3. Camping by individuals and groups outside of 673 FSS established sites.

6.5.1.4. Use of dog sleds outside of cantonment areas.

6.5.1.5. Activities listed under paragraph **6.4.1,** this instruction, but not offered in restricted access areas through the JBER Recreational Access System.

6.6. **JBER Trail System:**

6.6.1. CEANC will develop and coordinate maintenance of trails for year-round recreational use.

6.6.2. ORV Use. The regulations governing the use of ORVs on JBER will be published in installation vehicle traffic policy. Use of snow machines, motorcycles, three/four wheelers and other ATVs, utility vehicles (UTV), and ORVs, are permitted on the

installation, but individuals must complete a specified safety orientation class as a prerequisite to obtaining a RAP prior to operating machines on JBER.

6.6.2.1. ORVs with a Gross Vehicle Weight of 1,500 pounds or less are authorized on designated trails and locations only. For further details on JBER snowmachine traffic laws refer to installation vehicle traffic policy. Persons entering JBER for recreational use of ORVs must transport (not ride) them to the authorized ORV use area.

6.6.2.2. Violations of operating rules may result in a one year recreational barment (see **Attachment 5**), the loss of the RAP and the loss of ORV use privileges on the installation for one year.

6.6.3. Hiking-Cross Country Skiing. All trails not designated exclusively for other uses will be open to skiing in winter and year-round hiking.

6.6.4. Dog sled mushing and horseback riding are authorized only on marked trails.

6.6.5. Non-commercial berry and mushroom picking is authorized on JBER except in controlled or restricted areas; commercial berry or mushroom picking is not authorized. However, mushroom and berry picking in areas specifically closed to recreation, off-limits, and areas closed by range control is prohibited.

6.6.6. Specific Prohibitions for Trail Use:

6.6.6.1. Users of snow machines, ATVs, dog mushers and horseback riders must stay on marked trails.

6.6.6.2. Motorized vehicles over 1,500 pounds are prohibited from driving off any posted or regularly maintained road surface, except as specifically authorized by CEANC. Contractors requiring access to remote areas will coordinate with CEANC.

6.6.6.3. Horseback riding or the use of horses may be permitted in the ORV areas, at the discretion of the CEANC. Horses may be used to traverse TA 426 via the Arctic to Indian (Ship Creek Valley) trail. Horses in training area (TA) 426 may not be tied or taken off of the Ship Creek Valley trail. Horses must be in full compliance with all applicable rules, regulations and policies. Any activity that creates damage to the surface soil layer, ruts, subsidence or erosion is prohibited. Authorized areas for horseback riding are multi-use areas, and riders must be aware of other recreational users.

6.7. **Water Sports and Activities:**

6.7.1. JBER lakes open to fishing are also open to boating with a RAP.

6.7.2. Boating. Both motorized and non-motorized boating is permitted. Motorized boats must be registered with the State in accordance with state regulations.

6.7.2.1. Gas-powered motors are permitted only on Lower Six-Mile and Clunie Lake. Gas-powered motors will not exceed 10 horsepower.

6.7.2.2. Larger motors may be operated for maintenance checks only while on the trailer at the boat launch at the northwest corner of Lower Six-Mile Lake.

6.7.2.3. Boating on Lower Six-Mile Lake is restricted to the area of the lake outside of the designated floatplane landing zone, as marked by buoys. The area between the landing zone and the floatplane docks also is off limits to boating.

6.7.2.4. Electric trolling motors may be used on all lakes open to boating.

6.7.3. Non-motorized boating is allowed on Eagle River from the JBER boundary down river to the Route Bravo Bridge.

6.7.4. Safety Restrictions. Boating will be performed safely at all times.

6.7.4.1. Boats and boaters must satisfy US Coast Guard (USCG) safety and boating requirements (USCG phone, 907-244-6082).

6.7.4.2. All occupants in or on watercraft, regardless of age, will wear a USCG approved Type I, II, or III Personal Floatation Device while on JBER waters.

6.7.4.3. Operators of motorized boats must meet State laws for operation of motorized vehicles. No individual may participate in boating on JBER lakes or waterways when impaired by alcohol or drugs.

6.7.4.4. Boaters will be considerate of individuals who are fishing, and watch for other boating traffic on the water.

6.7.5. Boaters may not closely approach loons or nesting waterfowl, or enter areas identified as restricted due to loon nests.

6.7.6. Boating of any kind on any river or stream except for Eagle River upstream of Bravo Bridge is prohibited. Those water sport activities not specifically addressed are prohibited.

6.8. **Picnicking.** Picnicking facilities may be constructed and maintained at the access points to JBER lakes which are open to fishing and along Ship Creek, as appropriate. Additional facilities will be constructed as needed, within funding limitations. All plans will be reviewed and approved by CEANC. The following rules apply to the use of picnic areas:

6.8.1. Use will be on a first-come, first-serve basis for all size of user groups.

6.8.2. Fires are not allowed, outside of 773 CES/CEF approved grills or barbeque (BBQ) pits provided at sites.

6.8.3. Vehicles must be parked in designated areas only. Parking on grassed areas is prohibited.

6.8.4. Pets must be leashed.

6.8.5. Camping in picnic areas is prohibited.

6.8.6. Littering is prohibited. All trash and food must be deposited only in bear resistant cans provided on site or removed by users.

6.9. **Camping:**

6.9.1. Overnight camping is not permitted on JBER except in established campgrounds (family camp (FAMCAMP), Black Spruce, Snowhawk Cabin and Otter Lake).

6.9.2. Camping permits for non-profit organizations will be evaluated based on the availability of the resources and impact on the mission.

6.9.3. Mission training activities may camp in areas designated by the JBCE.

6.10. **Prohibited Activities:**

6.10.1. Recreational activities involving removal of minerals (including gold panning, dredging, and mining of any kind) or fossils.

6.10.2. Any form of recreational activities from 2300 to 0600, except within the Cantonment Areas, Restricted Recreational Access Area (see paragraph **6.4**, this instruction), Otter Lake, and 673 FSS authorized camping and recreational use areas.

6.10.3. Hang gliding, ballooning, para-gliding, bungee-jumping, rappelling.

6.10.4. Commercial recreational activities, unless approved by the 673 ABW/CC.

6.10.5. Building structures on JBER land without specific approval. Unauthorized structures will be removed. This includes but is not limited to hunting camps, tree stands, hunt towers, cabins and other shelters that are not removed after the specific hunting season for which they were erected. There will be no year round shelters established, except those provided by the military as survival shelters. Steel nails, screws and bolts will not be used on any tree unless immediately removed at completion of the activity.

6.10.6. Displaying signs, unless required by ADF&G regulations or, without CEANC approval.

6.10.7. No geocaching unless approved by the 673 ABW Commander.

6.10.8. Tampering with unexploded ordnance. If ordnance or suspected ordnance is found, call 911 or contact Range Control or Security Forces immediately. **Under No Circumstances Will Such Ordnance Be Touched Or In Any Way Disturbed By Unauthorized Personnel.**

6.10.9. Paint Ball usage other than 673 FSS authorized areas.

6.10.10. Blocking or impeding access to training lands. Erecting camps or barricades on main trails or otherwise attempting to keep other recreational users out of or off of JBER land is not allowed. There is no “ownership” or claim to an area for any recreational activity. JBER training land, when open, is available for everyone’s recreational use within the restrictions of this instruction.

6.10.11. Launching any boat into Knik Arm from the shores of JBER, unless authorized by 673 ABW/CC or in response to an emergency or public safety incident.

6.10.12. Possession or use of fireworks is not authorized on JBER lands.

6.10.13. Recreational swimming, at any time of the year, in any river, stream or lake.

6.10.14. Littering is prohibited. All trash will be packed out or deposited in bear resistant trash receptacles.

7. Land Management:

7.1. **Objectives.** JBER lands will be managed in such a way as to protect and conserve water and soil resources, and maintain a landscape development program within mission constraints.

7.1.1. Aurora Housing is responsible for the care and improvement of lawns, gardens, trees and shrubs in accordance with the terms of their lease.

7.1.2. Units and organizations are responsible for their assigned areas around buildings and facilities.

7.1.3. All other land areas are the responsibility of the 673 CES/CC.

7.1.3.1. CEANC will conduct, coordinate and ensure compliance of land management activities on unimproved lands.

7.1.3.2. The 773 CES Operations Flight will provide land management plan input and conduct land management activities on improved and semi-improved lands in accordance with 3WGI 91-212.

7.2. **Land Management Plan.** CEANC will include a land management plan within the INRMP. This plan will be maintained as a segment of the JBGP and will be reviewed annually. Areas of the installation may be restricted based on Land Use Controls or Military Munitions Response Program. Personnel needing access to these areas should coordinate with CEANR. A listing of these sites is available in the JBGP.

7.3. **Grounds/Landscape Development and Maintenance:**

7.3.1. Improved and semi-improved grounds will be planted and maintained with a grass cover where mission requirements allow in accordance with 3WGI 91-212.

7.3.2. Ornamental plantings of trees and shrubs will be accomplished in accordance with the Landscape Development Plan as directed by 673 ABW/CC, or his/her designee, using locally adapted species. Planting berry or fruit producing trees and shrubs is prohibited within the BASH BEZ in accordance with 3WGI 91-212.

7.3.2.1. Landscaping requests will be made on AF Form 332, *Work Request*, through 773 CES Customer Service for units and organizations.

7.3.2.2. Nursery plants and shrubs may be made available by 773 CES/CEO as funds are available.

7.3.3. Unimproved grounds will be maintained in forest cover through the use of appropriate forest management practices or in shrub habitat as indicated in 3WGI 91-212.

7.3.4. The 773 CES/CEO and CEANC will meet at least once annually before April to coordinate vegetation and landscape management activities to be conducted during the summer season.

7.4. **Soil and Water Conservation.** The following restrictions apply to the protection of soil and water resources:

7.4.1. No soil disturbances deeper than two and one half inches will take place without a 673 ABW Form 3, *Base Civil Engineer Work Clearance Request* (Dig Permit). Dig permits outside the cantonment area require the installation cultural resource manager or

designated dig permit representative approval to ensure no archaeological sites are disturbed.

7.4.2. Streams and lakes will be kept free of all unnatural debris and litter which adversely impacts the aquatic ecosystem. Stream bank vegetation will be maintained to stabilize stream banks and prevent erosion as prescribed by CEANC in consultation with ADF&G.

7.4.3. Disturbance of stream beds and lake banks is prohibited, except to improve fish habitat or to perform such work required to stabilize stream banks for erosion control as approved by CEANC in consultation with the Corps of Engineers (COE), ADF&G, and NMFS.

7.4.4. Discharging solid or liquid wastes is prohibited.

7.4.5. Channeling, discharging, or diverting surface drainage into any stream, lake, or wetland is prohibited, except as authorized by USACE permit.

7.4.6. Septic tank drain fields must be located so as to prevent leaching into streams, lakes, and wetlands in accordance with 18 Alaska Administrative Code 72.020.

7.4.7. Gravel extraction must be addressed in the Joint Base General Plan (JBGP) and include reclamation plans that are initiated within one year of pit abandonment.

7.5. **Inter-Agency Coordination.** A formal cooperative agreement with BLM for land management is required. However, the following agencies will also be consulted as required in the management of natural resources as applicable:

7.5.1. State of Alaska:

7.5.1.1. Department of Natural Resources.

7.5.1.2. Department of Environmental Conservation.

7.5.1.3. Department of Fish and Game.

7.5.2. Federal Government:

7.5.2.1. US Army Corps of Engineers.

7.5.2.2. Environmental Protection Agency.

7.5.2.3. Natural Resources Conservation Service.

7.5.2.4. National Park Service.

7.5.2.5. USDA Wildlife Service.

7.5.2.6. US Fish and Wildlife Service.

7.5.2.7. US Forest Service.

7.5.2.8. National Oceanic and Atmospheric Agency, National Marine Fisheries Service.

7.6. **Cultural Resources on JBER Lands.** Cultural resources include archaeological sites, structures, ruins or landscapes that have local or national historical or cultural significance. These include, but are not limited to, homesteader, native and WWII/Cold War properties.

7.6.1. Discovery of Human Remains. All personnel, to include recreational users, who discover archaeological materials, human remains, or any such cultural resources will immediately cease any disturbance of the resource and the surrounding area and report such findings to the Cultural Resources Manager (CRM) or CEANC enforcement staff. In the case of human remains, the CRM will in turn contact the Air Force Office of Special Investigation (OSI) at 552-2256. All activities in the area will cease until that time when the CRM and OSI provides clearance. The disturbance or removal of cultural resources without the approval and direction of the CRM and the appropriate permits can be in violation of the Archaeological Resources Protection Act, the Native American Graves Protection and Repatriation Act, the American Indian Religious Freedom Act, related laws, regulations, and executive orders. Civil and criminal penalties are provided for in the above mentioned acts and regulations.

7.6.2. Buildings: Building alterations (interior and exterior) and the demolition of historic-eligible properties identified by Section 106, National Historic Preservation Act require the installation cultural resource manager approval. This includes construction projects in the immediate vicinity that would detract from the appearance of the historic-eligible buildings. A listing of buildings can be obtained from the CRM or a listing in the integrated cultural resources management plan (ICRMP).

7.6.3. Archaeological Sites. Alteration or removal of items from archaeological sites requires the approval of the installation CRM.

8. Information Collections. No information collections are required by this publication.

BRIAN P. DUFFY, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

DoDI 4715.03, *Natural Resources Conservation Program,* 14 February 2011.

AFI 31-207, *Arming & Use of Force by Air Force Personnel*, 29 January 2009.

AFI 32-7064, *Integrated Natural Resources Management,* 17 September 2004 .

AFI 32-7065, *Cultural Resources Management Program,* 1 June 2004.

AFPD 32-70, *Environmental Quality*, 20 July 1994.

AFMAN 33-363, *Management of Records*, 1 March 2008.

3WGI 91-212, *Bird and Wildlife Aircraft Strike Hazard (BASH) Program,* 9 May 2012.

USARAK Regulation 350-2, *Training, U.S. Army Alaska Range Regulation,* 15 July 2002.

Adopted Forms

AF Form 332, *Work Request*

AF Form 847, *Recommendation for Change of Publication*

DD Form 1131, *Cash Collection Voucher*

DD form 1408, *Armed Forces Traffic Ticket*

673 ABW Form 3, *Base Civil Engineer Work Clearance Request* (Dig Permit).

Abbreviations and Acronyms

ADF&G—- Alaska Department of Fish and Game.

AFCEE—- Air Force Center for Environmental Excellence.

AFRIMS—- Air Force Records Information management System.

ATV—- All-Terrain Vehicles.

BASH—- Bird Aircraft Strike Hazard program.

BBQ—Barbeque.

BEZ—- Bird Exclusion Zones.

BLM—- Bureau of Land Management.

CLEO—- Conservation Law Enforcement Officers.

COE—- Corps of Engineers.

DAF—- Department of the Air Force.

DoD—- Department of Defense.

DZ—- Drop Zones.

FOB—- Forward Operating Base.

EOD—- Explosive Ordnance Disposal.

FAMCAMP—- Family Camp.

GIS—Geographic Information Systems.

ICRMP—- Integrated Cultural Resources Management Plan.

INRMP—- Integrated Natural Resources Management Plan.

JBCE—- Joint Base Civil Engineer.

JBER—- Joint Base Elmendorf-Richardson.

JBGP—- Joint Base General Plan.

MCA—- Military Conservation Agents.

MOU—- Memorandum of Understanding.

NBC—- Nuclear, Biological, and Chemical.

NMFS—- National Marine Fisheries Service.

NRV—- Natural Resources Volunteers.

OPR—- Office of Primary Responsibility.

ORV—- Off-Road Vehicles.

OSI—- Office of Special Investigation.

RA—- Records Administrator.

RDS—- Records Disposition Schedule.

TA—-Training Area.

USARAK—- US Army Alaska.

USC—- United States Code.

UCMJ—- Uniform Code of Military Justice.

USCG—- U.S. Coast Guard.

USDA—- U.S. Department of Agriculture.

USFWS—U.S. Fish and Wildlife Service.

UTV—- Utility Vehicles.

WEZ—- Waterfowl Exclusion Zones.

Attachment 2

JBER MAPS

Figure A2.1. Cantonment Area Map

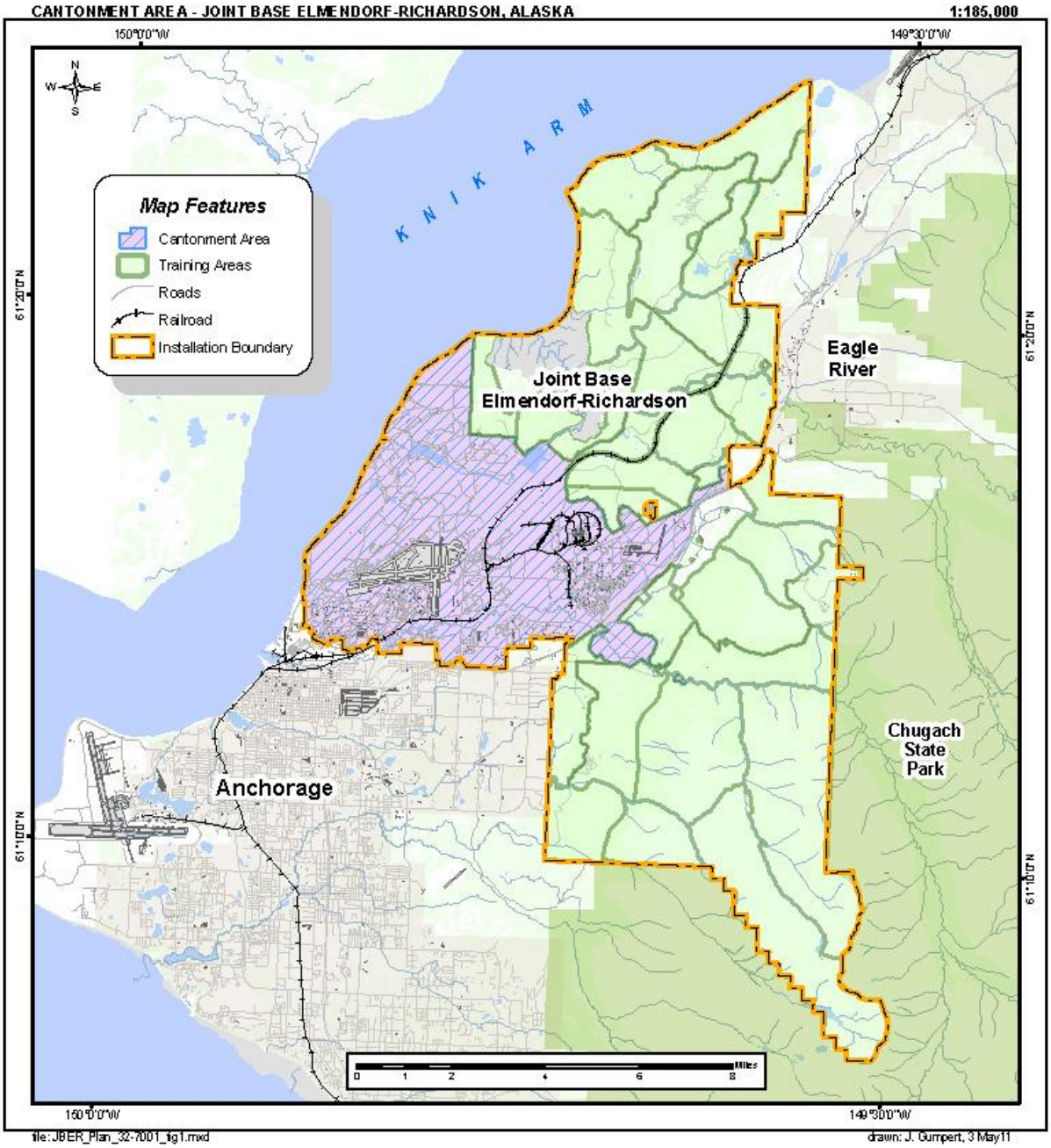
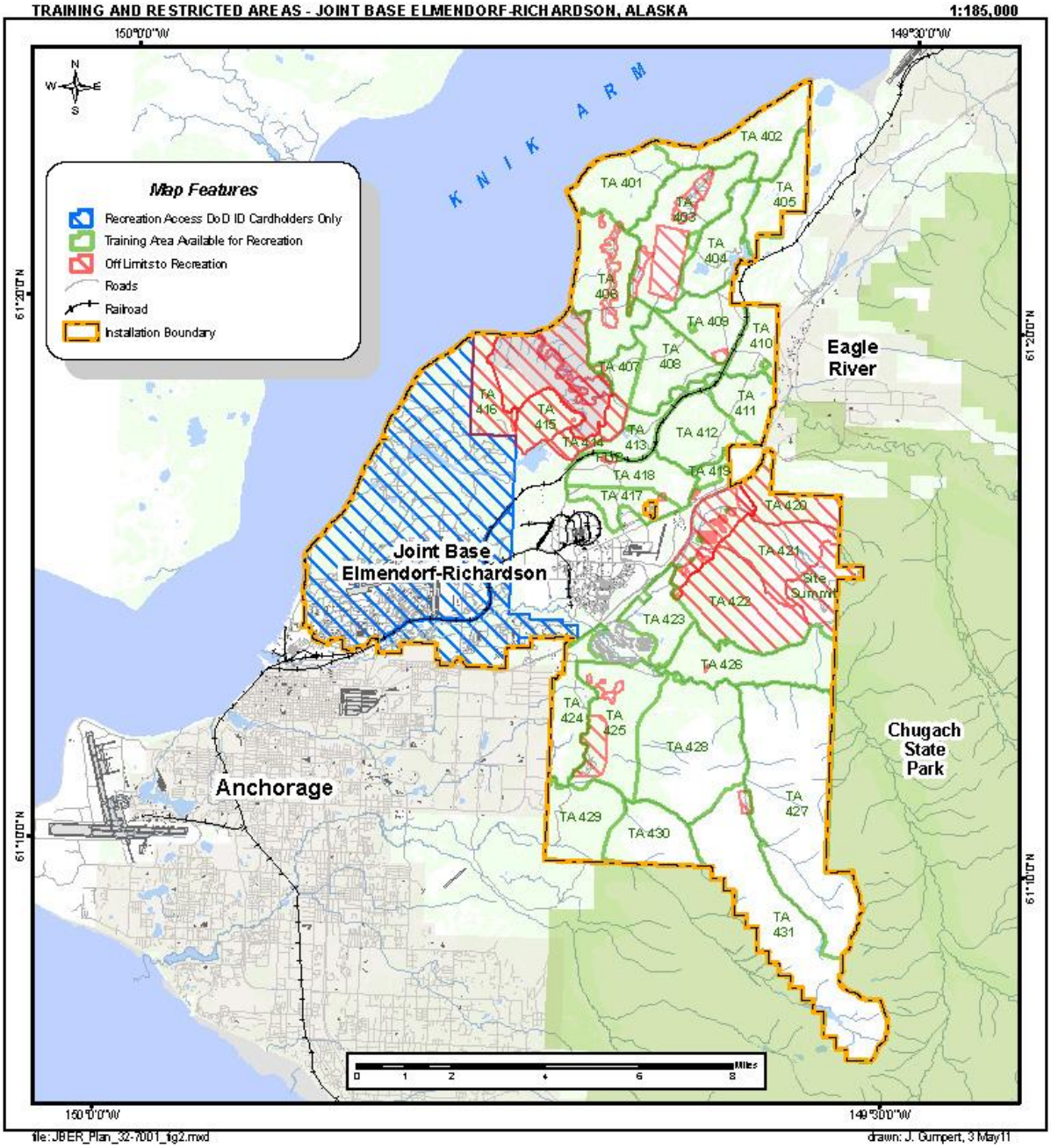


Figure A2.2. Training and Restricted Areas Map



Attachment 3

THE LETHAL DISPATCH OF WILDLIFE ON JBER

A3.1. Applicability. This policy applies to all personnel on JBER, excluding authorized BASH activities permitted by ADFG and USFWS, legal hunting, other agencies with concurrent jurisdiction, and persons authorized by ADFG special/depredation permits.

A3.2. Purpose. The purpose of this policy is to delineate the approval procedures for the dispatch of nuisance, aggressive and/or injured wildlife.

A3.3. Driver. Living with Wildlife Memorandum of Understanding (MOU) (FWS70181-9-K235) as signed by Elmendorf and Fort Richardson installation commanders in 2000. The MOU is supported by the Comprehensive Wildlife Management Plan (April 2000) and identifies response priorities:

A3.3.1. Ensure public safety (avoid human injuries and/or deaths).

A3.3.2. Minimize damage to private property or pets (although property owners are expected to take reasonable precautions to protect their property and avoid attracting wildlife.

A3.3.3. Minimize adverse effects to wildlife populations.

A3.3.4. Use humane methods during response or control actions.

A3.3.5. Inform the community about the situation and response that just occurred in order to help educate residents and visitors how to avoid these situations in the future. **NOTE:** Education to prevent these situations in the first place is perhaps the highest priority.

A3.4. Definitions:

A3.4.1. **Defense of Life and Property (DLP).** DLP incidents are those involving wildlife that constitutes imminent danger to humans or property as regulated by Title 5 Alaska Administrative Code 92.410.

A3.4.2. **Aggressive, and/or Nuisance Wildlife.** These categories of wildlife are those that have, after consultation with ADFG or JBER wildlife biologist met the criteria as defined in "Chapter 5: Wildlife Population Management and Conflict Response Actions" of the Living with Wildlife Comprehensive Wildlife Management Plan (April 2000).

A3.4.3. Nuisance Bear (or Canid). A nuisance bear is one that is repeatedly seen in a residential or developed area, and may occasionally be seen feeding on non-natural but available food sources (pet food, trash, or bird feed intentionally or unintentionally left by humans for bears to scavenge). In general, nuisance bears are habituated (unafraid) of humans.

A3.4.4. **Aggressive Bear (Or Canid).** An aggressive bear is one that either: (1) acts aggressive toward humans or pets for no apparent reason (when it is not defending a cub or food source;); (2) kills or attempts to kill livestock; (3) deliberately approaches humans or dogs in a predatory manner; (4) repeatedly attempts to break into structures (for example, sheds, houses, vehicles) that contain food or garbage; or (5) has become chronically attracted to human environments and has become a problem and threat to humans. A bear that is protecting a natural food source, territory, or cubs is behaving defensively and is not automatically presumed to be aggressive.

A3.4.5. **Nuisance Moose.** A nuisance moose is one whose behavior prevents human access to homes, businesses, or other structures, or behavior that results in property damage (eating gardens, ornamentals, and so forth).

A3.4.6. **Aggressive Moose.** An aggressive moose is one whose behavior appears intended to intimidate or harm a human or pet. This may include kicking, stomping, bluff charging, charging, rearing on hind legs, displaying "overly defensive behavior," or making "deliberate approaches."

A3.4.7. **Injured**. This category of wildlife, for purposes of this policy, describes wild animals injured, but alive, that:

A3.4.7.1. Are prostrate or disabled in two or more limbs and unable to depart the scene;

A3.4.7.2. Are bleeding profusely from human caused wounds and are likely to bleed out (excludes animals wounded by hunters or predators in undeveloped areas of JBER). **NOTE:** Air Force dispatching a hunter wounded animal requires animal to be turned over to the State.

A3.4.7.3. Display a compound fracture (bone protruding) above the first joint;

A3.4.7.4. Display an injury that will likely cause the animal to starve to death, or

A3.4.7.5. Display incapacitating lethargy from a wound or an unknown cause.

A3.5. Policy:

A3.5.1. **A DLP situation.** If an officer is faced with a DLP situation involving a distressed and aggressive animal that time does not permit obtaining the 673 CEG/CC's authority to dispatch the animal, the officer will carefully consider the risks associated with the discharge of a firearm in comparison to the risks being posed by the animal before taking action. Nothing in this policy prohibits an officer from exercising the necessary discretion to take immediate action to protect him/her or others from physical harm or injury.

A3.5.2. Upon the receipt of a report or upon the discovery of an aggressive, nuisance, or injured animal the desk sergeant and/or patrol officer on-scene will make contact with the senior conservation officer/on-call officer/or JBER wildlife biologist. The patrol officer on site will take no action other than to monitor the activities of the animal pending arrival of a conservation officer or biologist to the scene. Pending their arrival, the on-scene officer shall ensure all non-essential personnel are removed from the vicinity of the animal. Upon arrival, the conservation officer or biologist will assess the local conditions and the behavior of the animal and if time permits contact JBER and/or ADFG wildlife biologist to determine the best course of action in dealing with the animal.

A3.5.3. Injured animals caused by human actions in categories listed in **Attachment 3,** paragraphs **A3.7.1-3**, will be dispatched promptly and humanely by a senior conservation agent or patrol officer trained specifically in dispatching wildlife or as directed by the biologist after notifying the desk sergeant and ensuring a safe discharge as described in **Attachment 3,** paragraph **A3.5.5**. Notification to AK State Troopers and JBER and/or ADFG wildlife biologists will follow immediately.

A3.5.4. Injured animals listed in categories **Attachment 3**, paragraphs **A3.4.7.4-5**, that after consultation with ADFG or JBER wildlife biologists and/or base veterinarian, it's determined

that the most humane approach to alleviate suffering is to dispatch the animal, approval procedures listed in **Attachment 3,** paragraph **A3.5.5** will be initiated.

A3.5.5. If it's determined the appropriate course of action is the lethal dispatch of the animal, the conservation officer will, if time permits, contact the 673 CES/CC who will, in turn, contact 673 CEG/CC for permission to conduct the dispatch. The 673 CEG/CC will notify the ABW/CC or ABW/CV if the event is within the cantonment area and time allows. The authority to dispatch an animal, except under paragraph **A3.5.1, Attachment 3** (DLP incident) or paragraph **A3.5.3**, **Attachment 3** (severe injury lethal dispatch), may not be delegated. Before dispatching the animal officers shall, when the situation permits, make notification to residents or employees living or working within the impacted area to alert them to the impending actions. The officer will ensure a safe direction to discharge the firearm and safety of all personnel nearby.

A3.6. Progressive Actions in addressing nuisance wildlife after assessing the situation and location:

A3.6.1. Determine to allow animal remain in area and educate local residents/workers.

A3.6.2. Determine to move animal from area to safe distance.

A3.6.2.1. Voice/hand clapping.

A3.6.2.2. Lights/siren/horn/rattle can.

A3.6.2.3. Inert pepper ball/pepper ball/bear spray.

A3.6.2.4. Cracker shell/rubber slug (870 shotgun).

A3.6.2.5. Trap/relocate in coordination with ADFG wildlife biologist.

A3.6.2.6. Tranquillize/relocate by ADFG wildlife biologist.

A3.6.3. Determine to dispatch as recommended and approved by ADFG wildlife biologist.

A3.7. Dispatching Technique:

A3.7.1. The officer must consider the down range hazards posed by discharging a round as well as the likelihood of successfully dispatching the animal with the weapon at hand. The wounding of an animal may pose additional suffering and more severe hazards.

A3.7.2. Dispatching an animal the size of a black bear or larger will be at close range by 12 gauge shotgun slug. Wolf-coyote-lynx etc may be dispatched with buckshot. Handguns are strongly discouraged for dispatching wildlife.

A3.7.3. If at all possible the first shot will be a broadside shot to the chest cavity behind the front leg, ¼ of body up from sternum. Once on the ground follow up immediately with a shot to the brain just in front of the ear. Be aware of potential deflection of concrete, rock or asphalt under the animal.

A3.8. Notifications:

A3.8.1. Conservation officers will make timely notification to the desk sergeant who will record the action in the blotter and notify the JBER Command Post and MSG/CC.

A3.8.2. Conservation officers/ JBER wildlife biologists will make timely notification to AK State Troopers and ADF&G wildlife biologists.

A3.8.3. Conservation officers will remain on site to ensure the dispatched animal is properly salvaged and /or disposed in a safe location. Notification to biologists through the completion of a Wildlife Response Form will include:

A3.8.3.1. Species of animal:

A3.8.3.2. Location of accident/incident.

A3.8.3.3. Cause of death/injury.

A3.8.3.4. Time of death/injury.

A3.8.3.5. Sex of the animal.

A3.8.3.6. Any associated circumstances.

A3.8.3.7. Disposal action taken, including disposal location of animal or parts.

A3.9. After Action Report (AAR):

A3.9.1. The officer dispatching the animal will produce an AAR to be included with the Wildlife Response Form.

A3.9.2. The AAR will describe the steps taken in making the determination to dispatch, the consulting biologist, approval authority if required, and timing from notification to death of animal and previous steps taken to disperse the animal and reliable nearby witnesses.

A3.9.3. The AAR and Wildlife Response Form will be made available to the 673 CES/CC and 673 CEG/CC within 2 working days.

Attachment 4

HOLD HARMLESS AGREEMENT

Figure A4.1. Hold Harmless Agreement

AGREEMENT

I, _____, in exchange for my participation in

_____ (Event)

to be held at Joint Base Elmendorf-Richardson, Alaska, on _____ (Date), hereby release from liability and agree to hold harmless and indemnify the United States Air Force, its officers, agents, employees, and non-appropriated fund instrumentalities, from and against any and all suits, claims, demands or actions, liabilities, judgments, costs, and attorneys' fees arising out of, or in any manner predicated upon personal injury, death or property damage resulting from, related to, caused by or arising out of participation in said event or any activity conducted in relation thereto, including damages to the property of the United States Air Force, or of third parties.

I understand that the area I am being allowed to enter is used for military training. I understand that in allowing me to enter areas of JBER, the Department of the Air Force is not representing such area free of man-made hazards. As a consequence of extensive use for military training, I am likely to encounter related hazards such as excavated foxholes, pits, barbed wire, communications wire and unexploded munitions. I understand that my safety requires that I remain vigilant.

Additionally, I recognize and understand there are additional inherent risks associated with my particular activity, to include personal injury, personal property damage and even death. I understand that said event could involve falling trees, dangerous tools, including chainsaws, motor vehicles and other items and activities that have a high probability of causing harm. I also recognize that the acts of other individuals, through negligence, recklessness or otherwise, could cause personal injury, property damage or even death. I acknowledge that I am voluntarily participating in said event with a full understanding and appreciation of these potential dangers.

_____
(Signature)

_____
(Printed Name)

_____
(Date)

Attachment 5

BARMENT POLICY

Figure A5.1. Barment Policy

FOR OFFICIAL USE ONLY

(when filled out)

The memorandum is provided to any individual cited for violation of recreational permit requirements on JBER property. For Official Use Only applications apply as directed in AFI 33-332, paragraph **2.2.3.**

673 SFS Date: _____

MEMORANDUM FOR:

_____

Full Name

_____

(Mailing address for civilians) (Unit of Assignment for Military)

_____

(City, State and Zip Code)

_____

(SSN or Drivers License Number and State)

SUBJECT: Violation of Installation Recreational/Access Policies

1. Based upon my authority as the Joint Base Elmendorf Richardson (JBER) Installation Commander, this memorandum is to serve as formal notice that you are barred from recreating on JBER for which a recreational access permit is required. This conditional barment is effective immediately for one year from the date of issuance if prior a notice has been served to the above named in the form of a military citation (DD Form 1408, *Armed Forces Traffic Ticket*).

"The information herein is For Official Use Only (FOUO) which must be protected under the Freedom of Information Act of 1996 and Privacy Act of 1974, as amended. Unauthorized disclosure or misuse of this PERSONAL INFORMATION may result in criminal and/or civil penalties."

FOR OFFICIAL USE ONLY

(when filled out)

2. This action is being initiated against you for:

{ } Failure to obtain a recreational access permit (RAP) prior to recreating on JBER lands or failure to sign into the RAP system before recreating (second offense)

{ } Recreating in a closed area on JBER lands (firing ranges, drop zones, training areas closed to recreation by Range Control)

{ } Hunting/Fishing/Trapping Violation (AK Statute or JBER regulation)

{ } Not wearing a helmet or required PPE while operating a snowmobile or ORV

{ } Operating an ORVoutside of a designated areas or in violation ORV operating requirements.

{ } Violation of 673 ABWI 32-7001 or Alaska boating statue, safety requirements concerning the wearing of a Coast guard approved Personal Floatation Devices.

3. For this reason, it has been determined it is in the best interest of this command and military community to bar you from recreating on JBER property.

a. Title 18, United State Code, Section 1382 provides:

" Whoever, within the jurisdiction of the United States goes upon any Military, Naval, or coast Guard reservation, Post, Fort Arsenal, Yard, Station or Installation for any purpose prohibited by law or lawful regulation";

or

"Whoever re-enters or is found within such Reservation, Post, Fort, Arsenal, Yard, Station, or Installation after having been removed there from or ordered not to reenter by an officer or person in command or charge thereof shall be fined under this title or imprisoned not more than 6 month or both."

"The information herein is For Official Use Only (FOUO) which must be protected under the Freedom of Information Act of 1996 and Privacy Act of 1974, as amended. Unauthorized disclosure or misuse of this PERSONAL INFORMATION may result

in criminal and/or civil penalties."

FOR OFFICIAL USE ONLY

(when filled out)

b. Title 18, United States Code, section 3571 provides that the amount of the fine is not more than $5,000.

4. Should any compelling reason exist which you believe would be sufficient to justify a modification or termination of this order, you may submit your request in writing to the 673 Air Base Wing Commander, ATTN Commander, 673 Air Base Wing, 10471 20th Street, JBER, Alaska 99506.

5. You are further informed that, should you be found recreating within the limits of JBER, in contravention of this order, you will be subject to apprehension by Military/Security Police for prompt delivery to the appropriate authorities.

BRIAN P. DUFFY, Colonel, USAF
Commander

I acknowledge receipt of this memorandum.
(Printed Name)

(Signature / Date)

_____,

_____
(SFS/Conservation Enforcement officer, print name) (Signature)

"The information herein is For Official Use Only (FOUO) which must be protected under the Freedom of Information Act of 1996 and Privacy Act of 1974, as amended. Unauthorized disclosure or misuse of this PERSONAL INFORMATION may result in criminal and/or civil penalties."